

Plaintiff within thirty (30) days of the hearing on this Motions. The Court will utilize the forms of order submitted by Plaintiff.

Plaintiff Melissa Parrish Scarbrough's Motion to Compel Compliance with the Court's March 11, 2026 Discovery Order; Request for Monetary, Terminating and Issue Sanctions Against Defendants Kulwinder Lally dba Eazy Stop Market, Kuldeep Lally dba Eazy Stop Market, Harry Harwinder and Their Attorney, is unopposed and is granted in part. While the Court finds that neither issue nor terminating sanctions are warranted on this record, the Court does award additional monetary sanctions against Defendants Kulwinder Lally, Kuldeep Lally, and Harry Harwinder and their attorney of record, David Collins, in the amount of \$787.30. These sanctions are to be paid to Plaintiff within thirty (30) days of the hearing on this Motion. The Court will utilize the form of order submitted by Plaintiff.

Finally, as to Plaintiff's Motion for Issue, Evidence, Terminating and Monetary Sanctions in the Amount of \$1,732.30 and to Strike Defendants' Answer, the Court finds that the request for monetary sanctions is duplicative of the sanctions requested and ordered in relation to the Plaintiff's Motion to Compel Compliance with the Court's March 11, 2026 Discovery Order and this duplicative request is therefore denied. The Court further finds that there has been no showing of ongoing and willful disobedience of a Court's discovery order nor blatant and ongoing abuse of the discovery process that rises to the level of discovery abuse to support terminating sanctions. As such, terminating sanctions are not warranted on this record. See, *Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093. Likewise, as to issue and evidentiary sanctions, the Court similarly finds that such are not warranted here. The Motion is denied in its entirety.

The Court also advances the Case Management Conference on June 10, 2026 at 10:30 a.m. to 9:00 a.m. and continues the Case Management Conference to September 9, 2026 at 10:30 a.m. Case Management Statements are to be timely filed and served.

8. 24CV00332 TALCALO, ALEXANDRA V. LARA, ANTHONY ET AL

EVENT: Defendants City of Gridley and Anthony Lara's Motion for Summary Judgment or, in the Alternative, Summary Adjudication

Defendants City of Gridley and Anthony Lara's (collectively "Defendants" herein) Objections to Plaintiff Alexandra Tacalo's Evidence in Support of Her Opposition are overruled in their entirety. The Court finds that triable issues of material fact exist as to whether Plaintiff was lawfully detained and arrested, and whether Officer Lara used objectively justifiable and reasonable force [see Undisputed Material Fact Nos. 10, 19-21, 25-36, 40, 42, 44, 46-55, and 57], as such Defendants' Motion for Summary Judgment is denied. In regard to the Motion for Summary Adjudication, argued in the alternative, as to Issue No. One [Plaintiff was Lawfully Detained and Arrested Thus Her Theory for Unlawful Detention Under Her First Cause of Action is Subject to Dismissal], Issue No. Two [Plaintiff's Theory for Excessive Force Under Her First Cause of Action Must be Dismissed Because Officer Lara Used Objectively Reasonable Force Under the

Circumstances], and Issue No. Four [Plaintiff's Second Cause of Action for Battery Fails Given no Excessive Force was Used], the Motion for Summary Adjudication is likewise denied based upon the same Undisputed Material Facts cited above. In regard to Issue Three [Plaintiff's Theory for Denial of Medical Care Under Her First Cause of Action Must be Dismissed Because Plaintiff Lacks Sufficient Facts to Support Her Claim], the Court grants Defendants' Motion in this regard, finding no triable issue of material fact exists [See UMF Nos. 61, 62; Index of Exhibits in Support of Defendants City of Gridley and Anthony Lara's Motion for Summary Judgment or, in the Alternative, Summary Adjudication at Exhibits D and E; Requests for Admission Nos. 2 and 3, and Responses thereto]. Counsel for the Defendant shall prepare and submit a form of order consistent with this ruling within two weeks.

9. 24CV02857 PLATTS, TOBIAS, II ET AL V. JOHNSON, MARK ET AL

EVENT: Defendant's Motion to Compel Further Responses to Requests for Admissions, Set One, and Form Interrogatories, Set One, Request for Monetary, Evidentiary and Terminating Sanctions

Defendants have failed to include a Separate Statement in compliance with California Rules of Court Rule 3.1345(a), and the Motion is thus continued to July 1, 2026 at 9:00 a.m. for the filing of a Separate Statement.

10. 25CV00744 FISHER, JEFF V. FISHER, JENNIFER

EVENT: Amended Motion for Stay of Enforcement Pending Appeal

While the notice period complies with *Code of Civil Procedure* §1005, the proof of service showing service by email on May 8, 2026, service was made on Defendant's prior counsel – Leonard C. Hart Nibbrig. However, on May 6, 2026, Defendant filed a Substitution of Attorney wherein Mr. Nibbrig substituted out, and Defendant Jennifer Fisher, indicated she would be proceeding in pro per. There is no evidence that the Motion was served on Jennifer Fisher and the Court therefore continues this matter to July 1, 2026 at 9:00 a.m. to allow for proper notice. Plaintiff Jeff Fisher is ordered to serve a copy of the Amended Motion with notice of the new hearing date on Defendant Jennifer Fisher, and file with the Court a proof of service.

11. 25CV04054 BLOW, TRAVIS ET AL V. MENTUS, ANDREY ET AL

EVENT: Defendants' Motion to Vacate Entry of Default

Defendants/Cross-Defendants Ilya Lutsik; Anatoliy Semenovich Lutsik; and Lutsik Construction and Design, Inc.'s (collectively "Cross-Defendants" herein) Request for Judicial Notice is granted. The Court finds that Cross-Defendants have satisfied the statutory requirements for relief under both the mandatory and discretionary relief provisions of *Code of Civil Procedure* §473(b) and the Motion to Vacate Entry of Default is granted. The Default entered on April 17, 2026 is set aside and Cross-Defendants